

S.S. Industries v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 13 September 2017 · Writ-C No. 42704 of 2017 · WRIT - C No. - 42704 of 2017 · **Writ disposed; licensee to consider instalment request under clause 6.14.**

HEADNOTE

After part-payment of arrears, the licensee disconnected supply without considering the consumer's request to pay the balance in instalments. The Division Bench held that clause 6.14 of the U.P. Electricity Supply Code, 2005 empowers the concerned officer to extend the instalment benefit, and disposed of the writ by directing that officer to consider the request and, on compliance, to pass reconnection orders in accordance with law.

FACTUAL SUMMARY

The petitioner, S.S. Industries through its proprietor, approached the Allahabad High Court after disconnection of its electricity supply. It had offered payment of arrears and deposited Rs.40,000 against the amount due, and had asked the respondents to accept the balance in instalments. The respondents disconnected the connection without considering that instalment request. Counsel for the petitioner and Sri Baleshwar Chaturvedi for the respondents were heard on the writ.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment of arrears after disconnection

HOLDING

Clause 6.14 of the U.P. Electricity Supply Code, 2005 empowers the concerned licensee officer to extend the benefit of instalments. Where supply has been disconnected without considering a request to pay arrears in instalments, the writ court will not decide entitlement on merits but will direct that officer to consider the request and pass an appropriate order within a fixed time, and, if the consumer complies, to pass further orders on reconnection and regular supply in accordance with law. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 After part-payment of arrears, the licensee disconnected supply without considering the consumer's request to pay the balance in instalments. The Division Bench held that clause 6.14 of the U.P.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS ENTITLED TO INSTALMENTS OR RECONNECTION ON THE MERITS

The Court only directed consideration under clause 6.14 and reconnection orders in accordance with law. ¶ 1